

liates, suppliers or licensors, be liable with respect to any subject matter of this Agreement under any contract, negligence, strict liability or other legal or equitable theory for: (i) any special, incidental or consequential damages; (ii) the cost of procurement for substitute products or services; (iii) for interruption of use or loss or corruption of data; or (iv) for any damages whatsoever. GitLab shall have no liability for any failure or delay due to matters beyond their reasonable control. The foregoing shall not apply to the extent prohibited by applicable law.

9. Indemnification

9.1. You agree to indemnify and hold harmless GitLab, its affiliates, contractors, licensors, and their respective directors, officers, employees and agents from and against any and all claims and expenses, including attorneys' fees, arising out of your use of this Website, including, but not limited to, your violation of this Agreement.

10. Miscellaneous

10.1. If any provision of this Agreement is held by a court of competent jurisdiction to be invalid, void, or unenforceable, the remaining provisions shall nevertheless continue in full force without being impaired or invalidated in any way.

10.2. The failure of either party to enforce at any time, or for any period of time, the provisions of this Agreement shall not be construed to be a waiver of such provisions or of the right of such party to enforce each and every such provision.

10.3. All provisions of this Agreement which by their nature should survive termination shall survive termination, including, without limitation, ownership provisions, warranty disclaimers, indemnity and limitations of liability.

10.4. This Agreement shall be construed and enforced in accordance with the laws of California, U.S.A., and the parties submit to the jurisdiction of the State and Federal courts in San Francisco, California, without giving effect to any conflicts of laws principles.

SECTION: legal/privacy/_index.md

The Privacy Team is part of the Legal and Corporate Affairs Team. We provide support and guidance to uphold consistent business processes around the protection of personal data as it relates to GitLab customers, users, Team Members, and other natural persons. We collaborate cross-functionally and serve as advocates to ensure that the data privacy practices of GitLab meet the needs of our cross-functional partners and are continually balanced with an ever-changing global data privacy and protection landscape.

Quick Links

- What is data privacy
- Privacy Terms
- Vendor Privacy Review Process
- Internal Product Feature/Release Privacy Review

- Guidelines for Law Enforcement Requests
- Customer Product Usage Information and Usage Events FAQs

Privacy Statement Links

- GitLab Privacy Statement
- GitLab Cookie Policy
- GitLab Team Member Privacy Notice

Contact the Team

Slack channel - legal is the best place for questions relating to our team that do not require legal advice, deliverables, or any discussion of confidential information.

For issues that require action from the Privacy Team, apply the label Privacy::Intake. This will update the Privacy Legal Issue Board and allow the team to triage the issue appropriately. We also use the following labels:

- Privacy::In Process - when the Privacy Team is actively working on the issue
- Privacy::Pending Requestor - when the Privacy Team has a requirement or task that must be met by the business owner before the issue progresses
- Privacy::Done - when the Privacy Team has finished their portion of the issue
- Privacy::Attention for awareness only, no action needed.

For sensitive, private, or confidential requests email legalinternal@gitlab.com. Please do not send emails to this address for engineering, marketing, sales or procurement requests. These should be directed to legal or an issue should be created in the Legal and Compliance project.

What Data Privacy Means

Tell people what you are doing with personal data and why you are doing it so that the person can make an informed decision about whether they want to allow it to happen. Do not be creepy about what personal data is collected or how it is used and do not change the way personal data is used without first giving people notice and an opportunity to object, or, where required, obtaining prior consent. Make it easy for people to tell us their privacy preferences and honor those preferences even if they change over time. Build a product or service that has privacy-focused settings turned on by default and let the consumer decide if and when they want to change that. Transparency is a core value and every team member is responsible for the proper collection and use of personal data consistent with our Privacy Statement.

Privacy Terms

{{% details summary="Privacy Term Definitions" %}}

Anonymization The process of permanently and irreversibly altering personal data in a way that it is no longer capable of being related back to a specific individual.

Consent A freely given, specific, informed and unambiguous indication of an individual's wishes. Consent is captured by an un-ticked checkbox or other unequivocal statement which signifies agreement to the processing of personal data before or at the time of collection.

Data Classification A method of determining types of data associated by risk. See GitLab Security Data Classification Standards for more information.

Data Controller A natural or legal person, agency, or other entity which alone, or jointly with others, determines the purpose and means of processing personal data. For example, GitLab is a Data Controller in the areas of marketing and sales where the personal data of prospects and leads is managed solely at our discretion. GitLab also serves as a Data Controller for all personal data collected from Team Members for employment purposes and any administration of benefits.

Data Processor A natural or legal person, agency, or other entity which processes personal data on behalf of a Data Controller. GitLab acts as a Data Processor when we manage personal data native to a Customer's instance or namespace. GitLab acts as a Processor in these situations because the Customer is the ultimate owner of the data it submits to the service offerings, and our contracts service as Customer's instructions to GitLab regarding the processing of their data.

Data Subject An identified or identifiable natural person.

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Data Subject Rights Rights granted to individuals in relation to personal data or information processed about them. Because Data Subject Rights are instrumental to the privacy and protection of data subjects, many of these rights are codified under global privacy legislation, such as the GDPR, CCPA, and LGDP. If a business processes personal data pursuant to certain bases such as consent or legitimate interest, then a data subject may assert one of its fundamental rights and a business is obligated to respond under law. The rights granted vary slightly by country, region, province or state. GitLab treats all users and Team Members the same and will respond to a data subject request from any individual user or team member even if they live in a country, region, or state/province without specific data protection laws. Expand the following section for more information about the data subject rights available.

{{% details summary="Data Subject Rights" %}}

Right of Access A request seeking access to the specific pieces of personal data that have been collected and used by a Data Controller.

Right to Correct A request asking for inaccurate or incomplete personal data to be corrected.

Right to Delete A request which seeks the erasure of personal data relating to the data subject. Deletion requests must meet certain conditions and businesses are not required to delete any personal data that is processed to meet legal obligations, including that data which may be processed in pursuit or in defense of claims.

Right to Portability A request where the data subject wants to transfer their data to another Data Controller; typically seen when the individual changes service providers that share a compatible electronic filing system.

Right to Restrict Processing This is a request for the Data Controller to stop processing personal data under certain circumstances. This may also include a request to limit the use and disclosure of Sensitive Personal Data.

Right to Object A request to opt-out of all data processing or specific processing of personal data based on consent or legitimate interest. Generally this is a request to opt-out of processing for targeted advertising, which includes the sale or sharing of personal data for profiling or cross-context behavioral advertising.

Right Not to be Subject to Fully Automated Decisions This is a request that the data subject not be subjected to a decision based solely on automated processing, including profiling, which would have a significant legal impact. An example might be an algorithm that excludes someone of a certain race from obtaining a credit card.

{{% /details %}}

DPIA A Data Protection Impact Assessment is a method to review and document identified privacy compliance risks, as well as evaluate higher risks to the rights and freedoms of individuals, including any that pose potential for significant harm. Learn more about GitLab's process for completing DPIAs [here](#).

Personal Data Any data, individually or when combined with other data, that identifies, relates to, describes or is reasonably capable of being associated with or linked to an identifiable natural person (a 'data subject'), whether directly or indirectly. See also, [Sensitive Personal Data](#).

Privacy by Default A concept that should be implemented at the product development stage and uses appropriate measures to ensure that, by default, the only personal data processed is what is truly necessary. In practice, this means a user's privacy settings prioritize privacy in their default state.

Privacy by Design A concept which focuses on intentionally designing a product that incorporates foundational privacy principles and ensures that Controllers and Processors are able to fulfill data protection obligations. This may include appropriate technical and organizational measures such as pseudonymisation and encryption.

Pseudonymization The process of altering personal data so that it can no longer be attributed to a specific individual without the use of additional re-identifying information. In order to practice successful Pseudonymization, the re-identifying information should be kept separate from the pseudonymized data.

Publicly Available Personal Data Refers to personal data that is publicly available from federal, state, or local government records or made manifestly public by the data subject. Under limited data privacy laws this may also include personal data made public through widely distributed media.

Sensitive Personal Data Data that is particularly personal and intimately tied to the core identity of a person. This type of data generally includes racial or ethnic origin, political opinions, religious or philosophical beliefs, trade union membership, genetic data, biometric data, data related to health, data related to sex life or sexual orientation, criminal offenses, and citizenship/immigration status. In some jurisdictions, Sensitive Personal Data includes government identifiers and financial data.

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Privacy Review Process

Every vendor that handles personal data is required to go through a Privacy Review prior to being onboarded, which includes completion and approval of the privacy due diligence questionnaires detailed in the Procurement process. Certain vendors who are classified as handling red or orange data under our Data Classification Standards are reviewed annually. Additionally, when new product features are designed, there are times when a formal privacy review is required.

This section outlines the process for these reviews.

Vendor Privacy Review

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    A[Evaluating Potential<br> New Vendor] --> Did1[(Is there a Zip Request?)]
    B[Pilot with<br> New Vendor] --> Did1
    C[Renewing<br> Vendor] --> Did1
    Did1 --> E1[Yes]
    Did1 --> E2[No]
    E1 --> F[Privacy Review runs<br> concurrently with <br> Security and Legal in Zip]
    E2 --> G[Is there an existing Issue?]
    G --> H1[Yes]
    G --> H2[No]
    H1 --> I[Add Privacy::Intake<br> label to the Issue]
    H2 --> J[Create New Issue]
    F --> K[Privacy Review SLA<br> is 2 weeks]
    I --> K
    J --> K
    K --> L[If DPIA required<br> SLA for DPIA<br> is 4 weeks]
    L --> M[Approved?]
    M --> N1[Yes]
    M --> N2[No]
    N1 --> O[Process Complete<br> Approved]
    N2 --> P[Third-Party Risk<br> Acceptance Required]
```

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click P "https://gitlab.com/gitlab-com/legal-and-compliance/-/blob/master/.gitlab/issuetemplates/Third-Party-Risk-Acceptance.md" blank

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style J fill:98FB98
style K fill:ADD8E6
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style M fill:FF8C00
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For Third-Party Risk Acceptance, any Moderate/High risk requires VP and/or above approval

Internal Privacy Review

{{% details summary="Internal Product Feature/Release Privacy Review Process" %}}

Anytime a new feature or a change to an existing feature is planned, Product Managers and Engineering Managers should evaluate if the planned development presents a legal risk where personal data is involved. If Personal Data is implicated, utilize the Legal Risk Checklist and Workflow (internal only)

{{% /details %}}

Privacy Training

GitLab Team Members are required to complete annual training which covers general privacy practices worldwide. The goal of annual training is to ensure that Team Members understand what personal data is and how to handle it to ensure that GitLab maintains the trust our customers have placed in us as well as to ensure that GitLab remains compliant with frequently changing legal and regulatory obligations.

SECTION: legal/privacy/customer-product-usage-information.md

GitLab is committed to providing value and functionality through our free, open-source software and paid offerings (collectively, the "Software"). In order to continue innovating and supporting our growing user base, it is helpful to have in-depth knowledge of how our users are utilizing the Software, which we collect as certain metrics generated through a customer or a users' use of the Software ("Metrics"). To achieve the foregoing, GitLab collects information about how the features and functionality of the Software are used at an instance, namespace, or user level.

Instance or namespace level Metrics constitute total counts, such as the total number of projects, pipelines, issues, and merge requests related to that entire instance or namespace. These Metrics may also include an instance or namespace's settings, such as databaseversion or containerregistryenabled. User level Metrics are events related to specific user interactions with the Software, such as whether a user viewed a certain page or clicked a certain button in the Software. Subject to the exceptions described in the proceeding sections, the personal data of individual users is generally not collected.

The Metrics collected can be separated into three collection services: Service Ping, Snowplow, and License Sync (collectively, "Product Usage Data"). The details of each collection service can be found below, including the applicable Software type in which the Product Usage Data operates, the cadence for collection, and the types of Metrics collected.

What are the data collection services that constitute Product Usage Data

As stated above, there are three collection services GitLab uses to generate Product Usage Data, which in turn allow us to invest more efficiently and continue to expand both the open source and paid Software offerings.

Service Ping (formerly known as Usage Ping)

Purpose: GitLab collects Service Ping Metrics to collaborate with our customers to accelerate value attribution, achieve return-on-investment (ROI) goals, and accomplish business outcomes with the Software. Service Ping Metrics are composed of aggregate count Metrics related to an entire instance, tenant or namespace, as well as true/false Metrics regarding the enablement of certain settings or features. Aggregate counts are tallied in an "all-time" format and a "28-day" format. Please see our Service Ping FAQ [here](#).

Applicable Software: Service Ping Metrics are collected in the Self-Managed, GitLab.com and Dedicated versions of the Software. Generally, "Service Ping" is the name of the technology that collects the applicable Metrics from individual Self-Managed installations and Dedicated. Since GitLab.com is essentially a GitLab-hosted multi-tenant version of a Self-Managed instance, a version of Service Ping has been implemented for GitLab.com and provides GitLab.com equivalent Metrics to what we achieve with Self-Managed instances. For more information on how Service Ping operates exclusive to Self-Managed instances, please see our Service Ping Guide.

Configuration: Self-Managed and Dedicated Service Ping payloads contain instance-level Metrics for each individual Self-Managed installation and Dedicated tenant. GitLab.com Service Ping Metrics relate to both the entire GitLab.com instance as well as every GitLab.com namespace. Additionally, page views are automatically instrumented on GitLab.com.

Personal Data Collected: Since Service Ping Metrics are aggregated, these Metrics generally do not relate to an individual and do not contain information about projects or usernames. However, there are two possible exceptions where Service Ping Metrics may relate to an identifiable person.

The first exception is in the collection of hostname and IP address for Self-Managed instances or Dedicated. These Metrics are intended to relate to the instance, but the personal data of a natural person could be collected depending on the Software type. For example, if the Self-Managed instance is installed in an individual's home server, we may get a home IP address.

Similarly, the collection of a GitLab.com namespace could possibly contain the personal data of a natural person depending on the naming convention. The second exception is in the collection of paid licensee information. Because all Service Ping Metrics are correlated to an active licensee's name, email address, and company name, all Metrics collected by Service Ping may relate to that licensee.

Data Sharing: Service Ping Metrics are not shared with independent third-parties. The data is sent from Self-Managed instances, Dedicated or GitLab.com namespaces to the Versions App and our data warehouse for processing. These are GitLab-controlled systems.

Cadence: Service Ping collected via Self-Managed instances, Dedicated and GitLab.com namespaces are automatically generated on a weekly basis. The data will appear in our data warehouse within one-day after generation. Only the metrics that were instrumented through the version the Self-Managed instance is running on are available. For example, if a metric is instrumented during the development of version 16.9, it will be available on instances running versions equal to or greater than 16.9.

Ownership: Service Ping is owned by the GitLab Analytics Instrumentation Group.

Types of Data: Service Ping Metrics have been broken down into the four categories of Metrics listed below:

- **Operational Data:** Operational Data is a collection of aggregated usage and true/false Metrics that we are contractually obligated to collect in order to render Customer Success Services. Operational Data tracks how value is delivered through the use of the Software and provides insights into optimal customer implementation.

A full list of the Operational Data collected can be viewed [here](#).

- **Optional Data:** Optional Data is a collection of aggregated usage and true/false data generated by our users that is not required to support our day-to-day operations, yet provide valuable insights and knowledge that GitLab can use to improve our process, Software, and investment decisions. Optional Data compare counts month over month (or week over week) to get a rough sense for how an instance uses different Software features, collect other facts that help us classify and understand GitLab installations, and calculate our Stage Monthly Active Users (SMAU), which helps to measure the success of our stages and features.

A full list of the Optional Data collected can be viewed [here](#).

- **Subscription Data:** Subscription Data is a collection of license-related Metrics synced to our data warehouse from Self-Managed instances on version 14.1 or higher and connected to the internet. This data is also collected from Dedicated and GitLab.com. As described in our Subscription Agreement, these Metrics are needed because they provide basic information on user count and instance version, which helps to facilitate discussions regarding customer behavior in the areas of provisioning and renewals.

A full list of the Subscription Data collected can be viewed [here](#).

- **Standard Data:** Standard Data is a collection of metadata, such as hostname and edition, that allows us to associate other Service Ping categories to the correct instance or namespace.

Collection of these Metrics must be enabled to properly correlate Service Ping metrics in our data warehouse between the other three categories of Service Ping Metrics.

A full list of the Standard Data collected can be viewed [here](#). In addition, the IP address of an instance is another piece of metadata collected under this category.

Opting-Out: Each of the four Service Ping categories have different parameters regarding Opt-Out:

- Operational Data

- [Free Self-Managed instances \(CE or EE Distribution\)](#): Operational Data is not collected since the purpose of these Metrics are to assist customers with optimal use of the Software.

- [Paid Self-Managed instances \(EE Distribution\) and Dedicated](#): Operational Data is intended to be required and configuration is connected to your paid license. If you wish to opt-out you can speak with a GitLab sales representative or contact support. If your instance is on an Offline License, GitLab will not automatically collect Operational Data as long as the instance has followed the instructions for disabling Service Ping.

- [Free and Paid GitLab.com users](#): Do-Not-Track ("DNT") signals may prevent the collection of certain Operational Data Metrics that relate to browser level aggregate totals, such as the number of times a button was clicked by a user with DNT signals enabled. However, please note that DNT signals depend on how the event is triggered and thus may not be recognized in all situations. Further, DNT signals will not prevent the collection of downstream non-synchronous Metrics. For example, if a user with DNT enabled signals clicks a button to start a CI job, this button click will not be tracked. But if the same user pushes new code to a repository, thereby inciting an automated run of the same job, this run will be counted since it occurred non-synchronously from the user's direct action. Any other interactions that happen outside of the browser, such as a direct call to GitLab's API, may also be included in the Metrics.

- Optional Data:

- [Free and Paid Self-Managed instances \(CE or EE distribution\) or Dedicated](#): These Metrics are collected by default. Optional Data can be disabled through an in-app admin setting or through modifying the configuration file. Please visit our documentation to learn more.

- [Free and Paid GitLab.com users](#): Similar to Operational Data, DNT signals may prevent the collection of certain Optional Data Metrics that relate to browser level aggregate totals. However, please note that DNT signals depend on how the event is triggered and thus may not be recognized in all situations.

- Subscription Data:

- [Free Self-Managed instances \(CE or EE distribution\)](#): These Metrics are collected by default. Subscription Data can be disabled through an in-app admin setting or through modifying the configuration file. Please visit our documentation to learn more.

- [Paid Self-Managed instances \(EE distribution\) and Dedicated](#): Subscription Data collection is dependent on the license type used to activate your instance. Its collection is described in our Subscription Agreement. If you activate your instance using an activation code, usage data will be automatically synchronized between your Self-Managed instance and GitLab on a daily basis. If your instance is on an Offline License, then no data will be automatically collected. Once a month, the instance admin will be prompted to manually submit usage data to GitLab by email, but this is not required. Further, if your instance is on a Legacy License, then Subscription Data is not collected.

- [Free and Paid GitLab.com users](#): You cannot opt-out of Subscription Data for any

of our GitLab.com offerings.

- Standard Data:

- <ins>Free Self-Managed instances (CE or EE distribution)</ins>: These Metrics are collected by default. Standard Data can be disabled through an in-app admin setting or through modifying the configuration file. Please visit our documentation to learn more.

- <ins>Paid Self-Managed instances (EE distribution) and Dedicated</ins>: Standard Data cannot be disabled. However, if your instance is on an Offline License, GitLab will not automatically collect Standard Data as long as the instance has followed the instructions for disabling Service Ping.

- <ins>Free and Paid GitLab.com users</ins>: You cannot opt-out of Standard Data for any of our GitLab.com offerings.

Snowplow

Purpose: GitLab operates a product intelligence platform in our infrastructure called Snowplow to collect user-level interactions within the GitLab.com version of the Software (e.g., viewing a specific page, clicking a button, etc). Snowplow is also integrated into Self-Managed and Dedicated deployments of the Software. This allows us to provide detailed usage information to customers and it allows us to understand how users navigate the product. Unlike with Service Ping, the Metrics collected are not aggregated across an entire namespace, instance or tenant. Instead, Snowplow Metrics are attributable to a specific user, subject to a subsequent pseudonymization process. For more information on Snowplow, please see our comprehensive Internal Analytics documentation.

Applicable Software: Snowplow Metrics are collected from free and paid users of GitLab.com, Self-Managed and Dedicated versions of the Software.

Configuration: The Snowplow collector takes user events in real time from GitLab.com, Self-Managed and Dedicated and sends these user Metrics through our pseudonymization process. At this stage, the Metrics are stripped of personal identifiers, subject to the exceptions below, but the Metrics are still attributable to a namespace, instance or tenant. For Self-Managed and Dedicated, this pseudonymization process occurs within the instance or tenant.

Personal Data Collected: Snowplow does collect the personal data of individual users in a raw format. These raw Metrics, however, are sent through a pseudonymization process and subsequently purged, meaning only the pseudonymized Metrics are delivered to our data warehouse. These pseudonymized Metrics are still considered personal data under applicable data protection laws since these Metrics are capable of re-identification. GitLab, however, does not undertake any processes to re-identify or relate the Metrics back to individual users. There are two pieces of Snowplow Metrics that we do not pseudonymize: ProjectID and NamespaceID/GroupID. We also collect the country and region of the user's location, but we do not store IP addresses.

Data Sharing: Snowplow Metrics are not shared with independent third-parties. All systems and software used in the collection and transfer of Snowplow Metrics are GitLab-controlled systems.

Cadence: Snowplow Metrics collected from Self-Managed, GitLab.com and Dedicated are sent to the data warehouse contemporaneously.

Ownership: Snowplow is owned by the GitLab Analytics Instrumentation Group.

Types of Metrics: Snowplow Metrics are composed of all the pseudonymized user interaction Metrics found here, as well as ProjectID, NamespaceID/GroupID, and the country and region of the user's location.

Opting-Out: For GitLab.com, Snowplow Metrics pertain to individual pseudonymized user events and can only be opted-out on an individual basis using DNT signals. However, please note that DNT signals depend on how the event is triggered and thus may not be recognized in all situations. For Self-Managed and Dedicated, Snowplow Metrics can be disabled through an in-app admin setting. In addition, please see our FAQ for more information on scenarios where Snowplow Metrics are disabled on Self-Managed instances by default.

License Sync

Purpose: GitLab collects certain Metrics for Self-Managed instances and Dedicated through License Sync to be able to determine if the number of users provisioned under a paid license exceeds the monetary value of the subscription. If there is a disjunction between the subscription and the number of users under a license, these Metrics are used by the GitLab Fulfillment Team as part of a monthly, quarterly or annual reconciliation process. These Metrics also allows us to determine the number of open seats under a license and assists in our analysis of renewals and licensing consolidation.

Applicable Software: License Sync Metrics are collected from paid Self-Managed (EE Distribution) instances and Dedicated. License Sync does not collect Metrics from free Self-Managed (CE or EE Distribution). For GitLab.com versions of the software, the GitLab Fulfillment Team uses the Subscription Data collected by Service Ping to facilitate the reconciliation review described in the preceding paragraph. Please read our GitLab.com subscriptions and Self-managed subscriptions pages for more information.

Configuration: License Sync collects Metrics from paid Self-Managed instances and Dedicated to activate Cloud Licensing. Further, License Sync ingests these Metrics for Self-Managed and Dedicated customers and sends it to our Customer Portal for the aforementioned license management and reconciliations. Then the Metrics are sent to our data warehouse.

Personal Data Collected: The only personal data collected by License Sync is the name, email address, hostname and company of the individual listed on the paid Self-Managed or Dedicated license. These personal data elements are encrypted within the license key. Please read [here](#) for more details.

Data Sharing: License Sync Metrics are not shared with independent third-parties. License Sync, Customer Portal, and data warehouse are GitLab-controlled systems.

Cadence: License Sync Metrics are collected daily.

Ownership: License Sync is owned by the GitLab Fulfillment Team.

Types of Data: The Metrics collected include name, email, hostname and company of the individual listed on the paid Self-Managed or Dedicated license, as well as those Metrics listed [here](#).

Opting-Out: By default, all paid GitLab.com subscriptions on 14.1 or higher with an internet

connection will have Subscription Data collected via License Sync. If a Self-Managed or Dedicated customer wishes to opt-out of License Sync, they should consult with GitLab Sales to obtain a Legacy or Offline License. For paid GitLab.com subscriptions, you cannot opt-out of Subscription Data collected via Service Ping.

Switchboard

Purpose: GitLab customers using the Dedicated single tenant SaaS offering have access to a customer console called Switchboard. Switchboard is used by customer teams to maintain and configure their own Dedicated tenant. Metrics from the Switchboard application are collected to help GitLab better understand how Dedicated customers are using Switchboard. In turn, these Metrics will assist in driving further development of the Switchboard application.

Applicable Software: Switchboard Metrics are collected only from Dedicated users with access to the Switchboard application.

Configuration: Switchboard Metrics are only collected from the Switchboard application itself and not from the Dedicated tenant. Therefore, user interactions in the Dedicated tenant do not result in any data collected under this section. Please view this high-level diagram that demonstrates the flow of Metrics collected from the Switchboard application and sent to our data warehouse for further processing.

Personal Data Collected: Switchboard Metrics are initially tied to an individual user in a raw format. However, these Metrics are sent through a de-identification process and subsequently purged, meaning only pseudonymized Metrics or Metrics aggregated across an entire Switchboard customer console are delivered to our data warehouse. Pseudonymized Metrics are still considered personal data under applicable data protection laws since these Metrics are capable of re-identification. GitLab, however, does not undertake any processes to re-identify or relate the Metrics back to individual users.

Data Sharing: Switchboard Metrics are not shared with independent third-parties. The Switchboard application and data warehouse are GitLab-controlled systems.

Cadence: Switchboard Metrics are collected from GitLab.com and sent to the data warehouse contemporaneously.

Ownership: Switchboard Metrics are owned by the GitLab Dedicated Group and the Analytics Instrumentation Group.

Types of Data: A full list of the Switchboard Metrics collected can be viewed [here](#).

Opting-Out: Currently, there is no mechanism for opting out of Switchboard Metrics.

GitLab Duo (AI-Powered Features)

Purpose: GitLab collects Snowplow events from GitLab Duo users in order for GitLab to gain insights into the success and value of certain Duo features, understand end-to-end user interaction with these features, and ensure the features are debugged and working properly.

Applicable Software: GitLab Duo Metrics are collected from GitLab.com, Dedicated and Self-

Managed users that have Duo licenses since GitLab Duo is a cloud-connected feature add-on. For instances that use only self-hosted models, please see the opt-out directions at the bottom of this section.

Configuration: For GitLab.com or Dedicated, first-party Duo Metrics are collected from the editor extension by our Snowplow collector and then sent to our data warehouse. For Self-Managed instances, first-party Duo Metrics are collected from the editor extension, sent to the instance, and our Snowplow collector sends the Metrics from the instance to our data warehouse.

Personal Data Collected: GitLab Duo Metrics may contain the personal data of individual users in a raw format. These raw Metrics, however, are sent through a pseudonymization process and subsequently purged, meaning only the pseudonymized Metrics are delivered to our data warehouse. Specifically, we pseudonymize fields such as `userid`, `namespaceid`, `projectid` and `pageurl` to protect user privacy while still maintaining the ability to analyze usage patterns. These pseudonymized Metrics are still considered personal data under applicable data protection laws since these Metrics are capable of re-identification. GitLab, however, does not undertake any processes to re-identify or relate the Metrics back to individual users.

Data Sharing: GitLab Duo Metrics are not shared with independent third-parties. All systems and software used in the collection and transfer of GitLab Duo Metrics are GitLab-controlled systems.

Cadence: GitLab Duo Metrics that are collected from GitLab.com, Dedicated, and Self-Managed are sent to our data warehouse contemporaneously.

Ownership: GitLab Duo Metrics are owned by the Analytics Instrumentation Group.

Types of Data: A full list of the GitLab Duo Metrics collected can be viewed [here](#). In addition, you can find a general overview of Duo telemetry [here](#).

Opting-Out: Currently, there is no mechanism within the GitLab settings to opt-out of GitLab Duo Metrics for an entire instance or namespace. However, if you opt-out of telemetry in the extension editor, GitLab will honor that user-level opt-out across GitLab.com, Dedicated, or Self-Managed. For Self-Managed instances that only power Duo with self-hosted models, GitLab Duo Metrics may be disabled through the same in-app administrative setting used to disable all Snowplow Metrics for Self-Managed.

SECTION: legal/privacy/dpia.md

GitLab is fully committed to protecting the personal data of its customers, employees, suppliers and other stakeholders in accordance with global comprehensive data privacy laws. We take the privacy of personal data very seriously and have initiated a variety of methods and controls to ensure we know what data we collect and hold and that we protect that data appropriately.

As part of this commitment, GitLab ensures that, where appropriate, projects and personal data processing activities are subject to Privacy Reviews and a Data Protection Impact Assessment (DPIA) as key components of a 'Privacy by Design' approach.

The Privacy by Design approach is based on the principles of the processing purpose limitation, data minimisation, fair and lawful processing, designing products and services that enable the user to exercise rights of access, deletion, restriction, portability, and data quality.

Privacy Reviews and DPIAs should be used to ensure that our obligations in this area are met.

What is a DPIA

A Data Privacy Impact Assessment (DPIA) is a way to systematically and comprehensively analyze processing and minimize data protection risks. DPIAs should consider compliance risks, but also broader risks to the rights and freedoms of individuals, including the potential for any significant social or economic disadvantage. The focus is on the potential for harm - to individuals or to society at large, whether it is physical, material or non-material. These types of risks may lead to discrimination, identity theft or fraud, financial loss, reputational damage and other significant economic or social disadvantages. Ultimately, a DPIA is required when the level of risk to the rights and freedoms of natural persons is deemed "high".

To assess the level of risk, a DPIA must consider both the likelihood and the severity of any impact on individuals. A DPIA does not have to eradicate the risk altogether, but should help to minimize risks and assess whether or not remaining risks are justified. DPIAs are a legal requirement for data processing that is likely to be high risk. However, an effective DPIA can also bring broader compliance, financial and reputational benefits, helping to demonstrate accountability and building trust and engagement with individuals.

A DPIA can cover a single processing activity or a group of similar processing activities, and it is used throughout the development and implementation of a project to identify and fix problems early, saving time and monetary resources. The review of risks and any mitigation measures may be continuous, especially if anything changes to how or why a processing activity occurs.

When is a DPIA Required?

In determining whether a DPIA is legally required for a processing activity, GitLab considers the following high-risk criteria:

1. Does the processing use automation, including profiling, to make decisions that produce legal effects or could significantly affect an individual?
1. Does the processing involve sensitive data or data processed on a large scale?
1. Does the processing involve monitoring public areas on a large scale?
1. Does the processing match or combine data sets from separate processing operations?
1. Does the processing contemplate an innovative use or apply new technological or organizational solutions?
1. Does the processing in itself prevent data subjects from exercising a right or using a service?
1. Does the processing collect personal data from a source other than the individual without providing them with a privacy notice ('invisible processing')
1. Does the processing track individuals location or behavior?

How are DPIAs Conducted?

In the early stages of a project, when a new vendor/service provider is being considered, and at regular intervals during a project's lifecycle or the use of a vendor or service, a Privacy Review occurs. This review runs alongside the planning and development process or the selection of new vendors and tech stack tools and at key renewal dates. The outcome of the Privacy Review informs whether a full DPIA is necessary. The Privacy Team conducts these reviews in collaboration with Security to ensure that risks are identified, assessed, and managed according to GitLab's security risk management process. When a high level of risk is identified, the Privacy Team will collaborate with the relevant stakeholders to initiate and complete a DPIA. This typically will involve a Product Manager, business/technical owner, and the appropriate risk owner for the team.

GitLab Team Members can obtain additional details about DPIAs and how they are conducted, including specifics about the workflow process here (internal only).

SECTION: legal/privacy/employee-privacy-policy.md

This Employee Privacy Policy ("Privacy Policy") explains what types of personal data we may collect about our employees and how it may be used.

While this Privacy Policy is intended to describe the broadest range of our data processing activities globally, those processing activities may be more limited in some jurisdictions based on the restrictions of their laws. For example, the laws of a country may limit the types of personal data we can collect or the manner in which we process that data. In those instances, we adjust our internal policies and practices to reflect the requirements of local law.

For personal data collected under this Privacy Policy, the controller will be GitLab and the GitLab affiliates by which you are employed. For, (i) specific security concerns around your data, (ii) in the event you feel that you have not received proper attention to your data request, or (iii) have any other data privacy concerns, please contact GitLab Privacy Team by emailing dpo@gitlab.com.

GitLab, Inc. is a global company with its headquarters in the U.S. This means that personal data may be used, processed, and transferred to the United States and other countries or territories and those countries or territories may not offer the same level of data protection as the country where you reside, including the European Economic Area. However, GitLab will ensure that appropriate or suitable safeguards are in place to protect your personal data and that transfer of your personal data complies with applicable data protection laws. Where required by applicable data protection laws, GitLab has ensured that service providers (including other GitLab affiliates) sign standard contractual clauses as approved by the European Commission or other supervisory authority with jurisdiction over the relevant GitLab data exporter (which typically will be your employer).

Who is collecting your personal data (who is the data controller)?

The GitLab entity that is a party to your employment contract or contract for services or otherwise employs you will be the data controller of your personal data. The following are the GitLab entities that act as controller: GitLab, Inc., GitLab, LLC., GitLab BV, GitLab GK,

GitLab GmbH, GitLab PTY Ltd, GitLab Canada Corp, GitLab IT BV, GitLab UK, Ltd., GitLab Ireland Ltd., GitLab Korea Limited, GitLab Singapore Pte Ltd., GitLab France S.A.S. and other GitLab subsidiaries throughout the globe (collectively "GitLab").

GitLab affiliates may act as processors on behalf of other GitLab affiliates and/ or controllers. Furthermore, GitLab, its affiliates and subsidiaries participate in a group-wide IT system in order to harmonize GitLab's IT infrastructure and its use (the "System"). The System also may hold data on all employees, workers, individual contractors and contingent workers ("Staff"). Insofar the System serves to improve and harmonize most of the human resources ("HR") processes within GitLab. GitLab, Inc. in the U.S. is responsible for the System.

Applicability of Other GitLab Privacy Policies

The websites of GitLab (e.g., about.gitlab.com) have separate privacy policies and terms of use that apply to their use. Additionally, some of our third party products and services may have separate privacy policies and terms of use that apply to their use. Any personal data collected in connection with your use of those websites or products and services are not subject to this Privacy Policy. If you are unsure how or if this Privacy Policy applies to you, please contact our Data Privacy Officer.

Third Party Services

In some cases, you may provide personal data to third parties that GitLab works with or that provide services to GitLab. This includes, those parties identified in the Tech Stack Application YAML ("Third Parties").

The Tech Stack is updated periodically to ensure accurate, up-to-date disclosure of employee and customer third party applications used at GitLab. This particular policy applies to those applications identified as relating to Employee applications. The use of such Third Party websites may be governed by separate terms of use and privacy policies which are not under our control and are not subject to this Privacy Policy. Please contact such Third Parties for questions regarding their privacy practices, as well as if you would like to have them modify, update, alter or delete your personal data. Please understand that there are exceptions to rights surrounding personal data relating to employment. GitLab is required to maintain certain employment information by law.

What is Personal Data?

Personal data, also known as personally identifiable information, for purposes of this Privacy Policy means any information that (i) directly and clearly identifies an individual, or (ii) can be used in combination with other information to identify an individual. Personal data does not include such information if it is anonymous or if it has been rendered de-identified by removing personal identifiers.

Examples of personal data include:

- An individual's name.
- Employee ID number.
- Home address.

- Home phone number.
- Personal email address.
- Names of family members.
- Date of birth.

What is Sensitive Personal Data?

Sensitive personal data is a subset of personal data that may be more sensitive in nature for the individual concerned.

Examples of sensitive personal data include:

- Race and ethnic information.
- Sexual orientation.
- Political/religious beliefs.
- Social security or other taxpayer/government issued identification numbers.
- Financial information.
- National identification number or passport information.
- Health or medical information, including genetic information.
- Criminal records.
- And in some regions, such as the European Union, trade union membership.

What Personal Data Do We Collect?

We collect and maintain different types of personal data about you in accordance with applicable law. This includes the following:

- Name
- Gender
- Home address
- Telephone number
- Date of birth
- Marital status
- Employee identification number
- Emergency contacts
- Residency
- Work permit status
- Military status
- Nationality
- Passport information
- Social security or other taxpayer/government identification number
- Payroll information, banking details
- Wage and benefit information
- Retirement account information
- Sick pay, Paid Time Off, retirement accounts, pensions, insurance and other benefits information (including the gender, age, nationality and passport information for any spouse, minor children or other eligible dependents and beneficiaries).
- Information from interviews and phone-screenings you may have had, if any.
- Date of hire, date(s) of promotion(s), work history, technical skills, educational background, professional certifications and registrations, language capabilities, and training

records.

- Beneficiary and emergency contact information.
- Forms and information relating to the application for, or in respect of changes to, employee health and welfare benefits; including, short and long-term disability, medical and dental care, etc.
- Physical limitations and special needs in order to provide reasonable accommodations.
- Records of work absences, vacation/paid time off, entitlement and requests, salary history and expectations, performance appraisals, letters of appreciation and commendation, and disciplinary and grievance procedures (including monitoring compliance with and enforcing our policies).

Where permitted by law and applicable we may collect the results of credit and criminal background checks, screening, health certifications, driving license number, vehicle registration, and driving history.

- Information required for us to comply with laws, the requests and directions of law enforcement authorities or court orders (e.g., child support and debt payment information).
- Acknowledgements regarding our policies, including employee handbooks, ethics and/or conflicts of interest policies, and computer and other corporate resource usage policies.
- Information captured on security systems and key card entry systems.
- Voicemails, e-mails, correspondence, documents, and other work product and communications created, stored or transmitted for professional or job related purposes using our networks, applications, devices, computers, or communications equipment.
- Date of resignation or termination, reason for resignation or termination, information relating to administering termination of employment (e.g. references).
- Letters of offer and acceptance of employment.
- Your resume or CV, cover letter, previous and/or relevant work experience or other experience, education, transcripts, or other information you provide to us in support of an application and/or the application and recruitment process.
- References and interview notes.
- Information relating to any previous applications you may have made to GitLab and/or any previous employment history with GitLab.

For specifics about what information is collected by third party applications, please refer to the Tech Stack Applications.

Apart from personal data relating to yourself, you may also provide us with personal data of related parties, notably your dependents and other family members, for purposes of your HR administration and management, including the administration of benefits and to contact your next-of-kin in an emergency. Before you provide such third-party personal data to us you must first inform these third parties of any such data which you intend to provide and of the processing to be carried out by us. You must ensure and secure evidence that these related parties, or their legal representatives if they are minors, have given their free and express consent that their personal data may be processed by GitLab and/or its affiliates and subcontractors for the purposes described in this Privacy Policy.

How is Data Collected?

Generally, we collect personal data directly from you in circumstances where you provide personal data (during the onboarding process, for example). However, in some instances, the

personal data we collect has been inferred about you based on other information you provide us, through your interactions with us, or from third parties. When we collect your personal data from third parties it is either because you have given us express consent to do so, your consent was implied by your actions (e.g., your use of a Third-Party employee service made available to you by us), or because you provided explicit consent to the Third-Party to provide the personal data to us. Where permitted or required by applicable law or regulatory requirements, we may collect personal data about you without your knowledge or consent.

We reserve the right to monitor the use of our equipment, devices, computers, network, applications, software, and similar assets and resources for the safety and protection of employees and intellectual property. In the event such monitoring occurs, it may result in the collection of personal data about you. If required by applicable law, we will notify you of such monitoring and obtain your consent.

How We Process and Use Your Personal Data

We may collect and process your personal data in the Systems for various purposes subject to local laws and any applicable collective bargaining agreements and works council agreements, including:

- Recruitment, training, development, promotion, career, and succession planning
- Appropriate vetting for recruitment and team allocation including, where relevant and appropriate, credit checks, right to work verification, identity fraud checks, relevant employment history, relevant regulatory status and professional qualifications
- Providing and administering remuneration, salary, benefits, and incentive schemes and providing relevant information to payroll
- Allocating and managing duties and responsibilities and the business activities to which they relate
- Identifying and communicating effectively with other employees and management
- Managing and operating conduct, performance, capability, absence, and grievance related reviews, allegations, complaints, investigations, and processes and other informal and formal HR processes and making related management decisions
- Consultations or negotiations with representatives of the workforce
- Conducting surveys for benchmarking and identifying improved ways of working employee relations and engagement at work (these will often be anonymous but may include profiling data such as age to support analysis of results)
- Processing information about absence or medical information regarding physical or mental health or condition in order to assess eligibility for incapacity or permanent disability related remuneration or benefits, determine fitness for work, facilitate a return to work, make adjustments or reasonable accommodations to duties or the workplace and make management decisions regarding employment or engagement or continued employment or engagement or redeployment and conduct related management processes
- For planning, managing and carrying out restructuring or redundancies or other change programs including appropriate consultation, selection, alternative employment searches and related management decisions
- Operating email, IT, Internet, intranet, social media, HR related and other company policies and procedures. The company carries out monitoring of GitLab's IT systems to protect and maintain the systems, to ensure compliance with GitLab policies and to locate information through searches where needed for a legitimate business purpose
- Complying with applicable laws and regulation (for example maternity or parental leave

legislation, working time and health and safety legislation, taxation rules, worker consultation requirements, other employment laws and regulation to which GitLab is subject in the conduct of its business)

- Monitoring programs to ensure equality of opportunity and diversity with regard to personal characteristics protected under local anti-discrimination laws
- Planning, due diligence and implementation in relation to a commercial transaction or service transfer involving GitLab that impacts on your relationship with GitLab (for example mergers and acquisitions or a transfer of your employment under automatic transfer rules)
- For business operational and reporting documentation such as the preparation of annual reports or tenders for work or client team records including the use of your personal photo
- In order to operate the relationship with Third-Party customer and suppliers including the disclosure of relevant vetting information in line with the appropriate requirements of regulated customers to those customers, contact or professional CV details or resume, or your personal photo for identification to clients or disclosure of information to data processors for the provision of services to GitLab
- Where relevant for publishing appropriate internal or external communications or publicity material including via social media in appropriate circumstances, provided that privacy rights are preserved
- To support HR administration and management and maintaining and processing general records necessary to manage the employment or worker relationship and operate the contract of employment or engagement
- To centralize HR administration and management processing operations in an efficient manner for the benefit of our employees and to change access permissions
- To provide support and maintenance for the System
- To enforce our legal rights and obligations, and for any purposes in connection with any legal claims made by, against or otherwise involving you
- To comply with lawful requests by public authorities (including without limitation to meet national security or law enforcement requirements), discovery requests, or where otherwise required or permitted by applicable laws, court orders, government regulations, or regulatory authorities (including without limitation data protection, tax and employment), whether within or outside your country
- Other purposes permitted by applicable privacy and data protection legislation including where applicable, legitimate interests pursued by GitLab where this is not overridden by the interests or fundamental rights and freedoms of employees.

Legal Basis for processing

Where applicable data protection laws require us to process your personal data on the basis of a specific lawful justification, we generally process your personal data under one of the following bases:

Compliance with a legal obligation to which GitLab is subject; Entering into at-will employment (for US only) or performance under an employment contract with GitLab;

For GitLab's legitimate interests being those purposes described in the section above headed "How We Process and Use Your Personal Information";

Your consent where required and a legitimate legal basis under applicable local laws.

We may on occasion process your personal data for the purpose of the legitimate interests of a Third-Party where this is not overridden by your interests.

Processing of Special Categories of Personal Data

"Special Categories of Personal Data" includes information revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, trade union membership, health, sex life or sexual orientation, as well as genetic and biometric data.

From time to time you may provide us with information which constitutes Special Categories of Personal Data or information from which Special Categories of Personal Data may be deduced. In such cases, where required by law, we will obtain your express written consent to our processing of Special Categories of Personal Data. If separate consent is not required by local law, by providing this information to GitLab, you give your freely given, informed, explicit consent for us to process those Special Categories of Personal Data for the purposes set out in How We Process and Use Your Personal Data section above.

You may withdraw your consent at any time by contacting GitLab's People Operations Group or the DPO. Where you have withdrawn consent but GitLab retains the personal data we will only continue to process that Special Category Personal Data where necessary for those purposes where we have another appropriate legal basis such as processing necessary to comply with legal obligations related to employment or social security. However, this may mean that we cannot (for example) administer certain benefits or contact your next-of-kin in an emergency or provide support to you above and beyond our legal obligations. You give your knowledgeable, freely given, express consent to GitLab for GitLab to use, disclose and otherwise process any personal health information about you that is provided to GitLab by any of your personal health information custodians, for the purposes set out in the How We Process and Use Your Personal Information section above.

Sharing Personal Data

Your personal data may be shared, including to our affiliates, subsidiaries, and other third parties, as follows:

- Where you request us or provide your consent to us.
- In order to carry out the uses of personal data described above (see, How We Process and Use Your Personal Data).

When using or collaborating with third parties in the operation of our business, including in connection with providing many of the benefits and services we offer our employees (e.g., human resources information systems, financial investment service providers, insurance providers).

When we share personal data with third parties we typically require that they only use or disclose such personal data in a manner consistent with the use and disclosure provisions of this Privacy Policy and applicable law.

- We may buy or sell businesses and other assets. In such transactions, employee data is generally one of the transferred business assets and we reserve the right to include your personal data as an asset in any such transfer. Also, in the event that we, or substantially all of our assets, are acquired, your personal data may be one of the transferred assets.
- Where required by law, by order or requirement of a court, administrative agency, or government tribunal, which includes in response to a lawful request by public authorities, including to meet national security or law enforcement requirements or in response to legal process.
- If we determine it is necessary or desirable to comply with the law or to protect or defend our rights or property.

- As necessary to protect the rights, privacy, safety, or property of an identifiable person or group or to detect, prevent or otherwise address fraud, security or technical issues, or to protect against harm to the rights, property or safety of GitLab, our users, applicants, candidates, employees or the public or as otherwise required by law.
- Where the personal data is public and exempted from coverage under applicable data protection laws.
- To seek advice from our lawyers and other professional advisors.
- To professional advisors (e.g. bankers, lawyers, accountants) and potential buyers and vendors in connection with the sale, disposal or acquisition by use of a business or assets.

Access to Personal Data We Collect

To the extent access is required by applicable law, you can request access to the personal data that we hold about you. There are two separate processes obtain access to your personal data. If you are an active GitLab team member you can access your personnel documents via self-service in Workday (and the various payroll systems as applicable). For additional assistance on obtaining your personnel file GitLab team members should reach out via HelpLab. Former team members can email people-connect@gitlab.com to request their personnel file. You can review the types of personal data contained in a Personnel File [here](#). If you want to review personal data beyond what is included in a Personnel File, please submit a Data Access Request form. If you want to correct your personal data, please make necessary changes directly in Workday.

When requesting access to your personal data, please note that we may request specific information from you to enable us to confirm your identity and right to access, as well as to search for and provide you with the personal data that we hold about you.

We reserve the right not to grant access to personal data that we hold about you if access is not required by applicable law. There are also instances where applicable law or regulatory requirements allow or require us to refuse to provide some or all of the personal data that we hold about you. In addition, the personal data may have been destroyed, erased or made anonymous. In the event that we cannot provide you with access to your personal data, we will inform you of the reasons why, subject to any legal or regulatory restrictions.

Correction of Collected Personal Data

We endeavor to ensure that personal data in our possession is accurate, current and complete. If an individual believes that the personal data about him or her is incorrect, incomplete or outdated, he or she may request the revision or correction of that data. We reserve the right not to change any personal data we consider to